

**STATE OF MICHIGAN
IN THE CIRCUIT COURT FOR THE COUNTY OF WAYNE
FAMILY DIVISION**

ADRIENNE MARJORIE ROCKENHAUS,
Petitioner,

Case No. 26-102221-PP
Hon. Yvonna C. Abraham

v.

CONRAD ALAN ROCKENHAUS,
Respondent.

**NOTICE OF INTENT TO REQUEST JUDICIAL NOTICE
AT APRIL 29, 2026 HEARING**

Respondent Conrad Alan Rockenhaus, appearing *pro se*, respectfully notifies Petitioner and this Honorable Court that at the April 29, 2026 hearing on Respondent's Motion to Terminate Personal Protection Order and Petitioner's Motion to Show Cause, Respondent will request that the Court take judicial notice pursuant to Michigan Rule of Evidence 201(b)(2) and MCL 600.2106 of the following two adjudicative facts, each of which can be accurately and readily determined from sources whose accuracy cannot reasonably be questioned:

1. On March 6, 2026, the United States District Court for the Eastern District of Michigan entered an Order in the consolidated civil-rights action formerly docketed at 2:25-cv-12716-JMB-SJB severing Petitioner's claims from Respondent's. A certified copy of the Order (ECF No. 27) is attached as **Exhibit A**.
2. On December 15, 2025, Petitioner filed in the same consolidated proceeding a 61-page motion purporting to act as Respondent's "Next Friend" under *Whitmore v. Arkansas*, 495 U.S. 149 (1990). A certified copy of Petitioner's Next Friend motion (ECF No. 10) is attached as **Exhibit B**.

I. Scope of Request

Respondent requests judicial notice of the **fact and date** of these two filings only. Respondent does **not** request the Court to take judicial notice of, or to credit as true, any disputed factual representation contained within either filing. The fact and date of each filing are indisputably ascertainable from the federal PACER docket.

The two facts are relevant to the pending proceedings as follows:

- a.** The March 6, 2026 severance order establishes the procedural posture of the consolidated federal civil-rights action during the period in which the Petition for Personal Protection Order was filed (February 19 and 20, 2026) and in the weeks following. Respondent's Motion to Sever was filed on February 18, 2026, two days before the PPO petition, and the order granting severance was entered fourteen days after the petition.
- b.** The December 15, 2025 Next Friend motion establishes the factual predicate for Respondent's subsequent revocation of Petitioner's Next Friend authority, which Petitioner has characterized in her Petition for Personal Protection Order as "retaliatory public court documents." Judicial notice of the fact of that filing establishes only that there was something to revoke. It does not ask the Court to credit Petitioner's characterization of the revocation.

II. Legal Basis

Under *In re Sumpter Estate*, 166 Mich App 48, 57 (1988), and MCL 600.2106, a trial court may take judicial notice of another court's authenticated order or judgment as *prima facie* evidence of the facts recited therein. Certified PACER copies constitute authenticated court records for this purpose. Under MRE 201(b)(2), facts ascertainable

from sources whose accuracy cannot reasonably be questioned are appropriate subjects of judicial notice. The Court may take judicial notice at any stage of a proceeding. MRE 201(c), (d).

III. MRE 201(e) Notice

This Notice is provided pursuant to MRE 201(e) to afford Petitioner timely opportunity to be heard on the propriety of the request at the April 29, 2026 hearing. Respondent will renew the request orally at the hearing, referencing this pre-filed Notice.

Respectfully submitted,

/s/ Conrad A. Rockenhaus

Conrad Alan Rockenhaus, Respondent, *Pro Se*

1690 Brookfield Drive

Ann Arbor, MI 48103

(254) 340-7910

crockenhaus@icloud.com

Dated: April 22, 2026

CERTIFICATE OF SERVICE

I hereby certify that on April 22, 2026, I filed the foregoing Notice of Intent to Request Judicial Notice with the Clerk of the Third Judicial Circuit by email to ppo@3rdcc.org.

I further certify that I served a copy of the foregoing, including all exhibits, on counsel for Petitioner by First Class Mail and electronic mail as follows:

Lisa Baker, Esq.

Aldrich Legal Services, PLLC

276 S Union St

Plymouth, MI 48170

Email: lisabaker@aldrichlegalservices.com; kris@aldrichlegalservices.com

/s/ Conrad A. Rockenhaus

Conrad Alan Rockenhaus, Respondent *Pro Se*

1690 Brookfield Drive

Ann Arbor, MI 48103

(254) 340-7910

crockenhaus@icloud.com

Dated: April 22, 2026

EXHIBIT A

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF MICHIGAN
SOUTHERN DIVISION

CONRAD ROCKENHAUS,

Plaintiff,

v.

Hon. Jane M. Beckering

STYLIANOS AGAPIOU, et al.,

Case No. 2:25-cv-12716

Defendants.

ADRIENNE ROCKENHAUS,

Hon. Jane M. Beckering

Plaintiff,

Case No. 2:25-cv-12736

v.

STYLIANOS AGAPIOU, et al.,

Defendants.

ORDER

This matter is before the Court on Plaintiff Conrad Rockenhaus's Motion to Sever (ECF No. 24.) For the reasons articulated below, the motion will be granted.

In his motion to sever, Plaintiff Conrad asserts that due to various factors, including "a breakdown of the interpersonal famil[i]al framework," his claims will be prejudiced by combining them with his spouse's claims. (*Id.*) Giving due consideration to the motion, as well as Plaintiff Conrad's present circumstances and both Plaintiffs' individual interests, the Court finds that returning these consolidated cases to their separate statuses will promote judicial efficiency, ease of administration, and the parties' respective interests. Accordingly,

IT IS HEREBY ORDERED that Case No. 2:25-cv-12716, *Conrad Rockenhaus v. Agapiou, et al.*, and Case No. 2:25-cv-12736, *Adrienne Rockenhaus v. Agapiou, et al.*, are severed, and the Clerk shall reopen Case No. 2:25-cv-12736.

IT IS FURTHER ORDERED that the Court's January 8, 2026 Order (ECF No. 105) is **vacated** to the extent it orders consolidation and the filing of a consolidated complaint and the Court's January 16, 2026 Order (ECF No. 20) is **vacated** to the extent it addresses the foregoing consolidated complaint. Both orders remain in effect as to all other matters.

Dated: March 6, 2026

/s/ Sally J. Berens
SALLY J. BERENS
U.S. Magistrate Judge

EXHIBIT B

41

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF MICHIGAN
SOUTHERN DIVISION



CONRAD ROCKENHAUS,

Plaintiff

Register Number: 39400-480

FCI Milan

4000 E Arkona Rd

Milan, MI 48160

ADRIENNE ROCKENHAUS,

Next Friend

35560 Grand River Ave, Unit 244

Farmington Hills, Michigan 48335

v.

STYLIANOS AGAPIOU, JEFFRY W. KONAL, DION THOMAS,

Defendants.

Case No. 2:25-cv-12716

Hon. Jane M. Beckering

Magistrate Judge Sally J. Berens

**MOTION TO PROCEED AS NEXT FRIEND, OBJECTIONS TO REPORT AND
RECOMMENDATION (ECF No. 9), AND REQUEST FOR STAY OF PROCEEDINGS**

Pursuant to the constitutional next-friend doctrine articulated in *Whitmore v. Arkansas*, 495 U.S. 149 (1990), and the Court's inherent authority to consider filings explaining a party's incapacity, Adrienne Rockenhaus respectfully moves this Court for leave to proceed as "Next Friend" for Plaintiff Conrad Rockenhaus, for the purpose of responding to the Magistrate Judge's Report

and Recommendation (ECF No. 9). This motion also serves as valid objections to the Report and Recommendation (R&R), which recommends dismissal without prejudice for failure to file an amended in forma pauperis (IFP) application.

As explained below, dismissal is inappropriate due to Conrad's financial incapacity, medical incapacity, and active obstruction by prison officials preventing compliance with the Court's orders. Finally, this motion requests a stay of proceedings until Conrad is released or receives adequate medical treatment, as he cannot meaningfully participate while suffering untreated injuries and deliberate neglect at FCI Milan.

See also 28 U.S.C. § 2242 (codifying next-friend practice in habeas proceedings), cited here as historical support for the doctrine's application in cases of incapacity.

GROUND'S FOR MOTION

1. Significant Relationship

Adrienne Rockenhaus is the wife of Plaintiff Conrad Rockenhaus and his designated representative under a legal Power of Attorney. She is actively dedicated to his best interests. (See Motion to Proceed as Next Friend in Related Case No. 2:23-cr-20701, attached as Exhibit A, which constitutes the complete Next Friend appeal filing and includes all necessary documentation for the Court's review). Ms. Rockenhaus also submits Exhibit B, a physician letter documenting her own medical limitations, solely to explain the extraordinary circumstances under which she is acting as next friend and to support any reasonable accommodation the Court deems appropriate.

2. Inability of Real Party to Proceed

Plaintiff Conrad Rockenhaus is incarcerated at FCI Milan and is currently unable to litigate his own cause due to lack of access to the court, medical incapacity resulting from an untreated head injury and seizures, and ongoing deliberate medical neglect. Specifically:

* Incapacity via Trauma: Conrad was arrested on September 4, 2025, merely seven days after this Bivens complaint and a related complaint (Case No. 2:25-cv-12736) were filed. During a "Tactical Breach" by U.S. Marshals, he was subjected to excessive force, including being beaten and kicked in the head. This raid involved the same John Doe Marshal identified in the related Bivens complaint who had previously sexually harassed the Next Friend. The raid resulted in a new traumatic brain injury (TBI) exacerbating Conrad's pre-existing service-connected TBI and seizure disorder. He subsequently suffered a grand mal seizure in federal duty court. (See Habeas Corpus Petition, Case No. 2:25-cv-12913, detailing the violence and injuries).

* **Video Reference:** A publicly available video of the September 4, 2025 arrest is available at <https://youtu.be/DnGDdGYQHfU?si=7854zQvNGS3qSyMg>. This link is provided solely for contextual reference and transparency regarding the incapacity argument; it is not submitted as a formal exhibit for adjudication at this stage.

* **Medical Neglect:** U.S. Marshals removed Conrad from the hospital prematurely, against medical advice, and prior to a full neurological evaluation. At FCI Milan, he faces deliberate medical neglect: denial of treatment for the head injury or seizures, medication tampering, obstruction of welfare checks, and exposure to abusive staff. He faces a substantial and imminent risk of serious harm, as documented in real-time supplements to his habeas petition.

* **Obstruction of Legal Process:** As detailed in Exhibit A, officials at FCI Milan actively obstructed his ability to prepare and file documents by denying entry to a licensed notary on October 22, 2025. This denial violated established BOP procedures (28 C.F.R. §§ 543.10–11) requiring reasonable legal preparation opportunities. Consequently, the Plaintiff was physically prevented from generating the notarized IFP forms requested by this Court.

* **Procedural Posture:** All active Article III judges of the Eastern District of Michigan have recused themselves from Conrad's matters. The case is proceeding before out-of-district judges. Conrad's inability to comply with procedural requirements occurred during this period of extraordinary judicial transition, while he was incarcerated, injured, and medically incapacitated. Strict application of Rule 41(b) without considering these incapacity explanations would be unjust.

* **Financial Status:** Conrad's financial situation remains unchanged and qualifies for IFP status, as approved in the related supervised release appeal (Case No. 2:23-cr-20701). (See Exhibit A, including the IFP Application and Approval).

3. Necessity to Avoid Forfeiture of Rights

Without Next Friend status, Conrad's claims in this Bivens action—alleging First Amendment retaliation, Fourth Amendment unreasonable search/seizure, and Fifth Amendment due process violations, will be forfeited due solely to his incapacity and prison barriers. This motion references the amended IFP information via the prior approval (Exhibit A) to cure the deficiency noted in the Court's Order (ECF No. 7) and R&R.

OBJECTIONS TO REPORT AND RECOMMENDATION

The R&R recommends dismissal for want of prosecution under Fed. R. Civ. P. 41(b) and E.D. Mich. LR 41.2 due to failure to file the amended IFP. Plaintiff objects to this recommendation. The recommendation overlooks the "good cause" for the delay: Conrad's post-filing arrest, head injury, seizure, and the specific obstruction by prison officials regarding notary access. Dismissal

is too harsh a sanction where the Plaintiff is physically, medically, and procedurally prevented from complying. The Court should deny the recommendation, accept the financial data in Exhibit A as sufficient for IFP purposes, and allow the case to proceed.

REQUEST FOR STAY OF PROCEEDINGS

Pursuant to the Court's inherent authority to manage its docket, *Landis v. North American Co.*, 299 U.S. 248 (1936), this Court should stay all proceedings until Conrad is released from custody or receives necessary medical treatment. He cannot meaningfully participate while suffering an untreated medical crisis, and facing imminent harm at FCI Milan. The retaliatory nature of the September 4 raid, occurring days after the Bivens filings, directly caused his current incapacity. A stay ensures fairness and prevents prejudice.

Dated: December 15, 2025

/s/ Adrienne Rockenhaus

Adrienne Rockenhaus, Next Friend for Conrad Rockenhaus

35560 Grand River Ave, Unit 244

Farmington Hills, MI 48335

adrienne@rockenhaus.com

Index of Exhibits

* Exhibit A: Motion to Proceed as Next Friend in Related Court of Appeals Docket #: 25-1974 (including IFP approval and argument regarding notary denial)

* Exhibit B: Medical Letter from Treating Psychiatrist

* Exhibit C Between December 12 and 14, 2025, I sent three emails to FCI Milan Support and Advocacy BOP-RSD-SupportAndAdvocacy-S@bop.gov, detailing life-threatening medical neglect of Conrad Rockenhaus (Reg. No. 39400-480) at FCI Milan, attempted financial extortion targeting me during a comms blackout, and escalating staff retaliation, with the final email demanding a response by 12:00 PM ET on December 15, 2025; as of December 15, 2025, at 1:00 PM ET, no responses have been received to the December 12 and 13 emails, and the December 15 response to the December 14 email is purely deflection, acknowledging concerns but providing no substantive confirmation of medical treatment, investigation, or resolution, instead referring to public resources and stating escalation to the North Central Regional Office

and Office of Internal Affairs (OIA), further evidencing deliberate obstruction and indifference that contributes to Conrad's incapacity to comply with court orders, and copies of all three emails and the December 15 response are attached hereto.

CERTIFICATE OF SERVICE

I hereby certify that on December 15, 2025, I served a copy of the foregoing MOTION TO PROCEED AS NEXT FRIEND, OBJECTIONS TO REPORT AND RECOMMENDATION, AND REQUEST FOR STAY OF PROCEEDINGS upon the following counsel for Defendants via U.S. First Class Mail:

Benjamin A. Anchill

U.S. Attorney's Office, E.D. Michigan

211 W. Fort St., Suite 2001

Detroit, MI 48226

Respectfully submitted,

/s/ Adrienne Rockenhaus

Adrienne Rockenhaus

734-585-6277